

PRIVACY POLICY

Introduction

Utilli is committed to keeping your personal data safe. This notice describes the personal data we collect, how it's used and shared, and your choices regarding this data.

We may occasionally update this notice. We encourage users to periodically review this notice for the latest information on our privacy practices.

Last modified: January 1, 2022

If you have any questions or concerns about your privacy or anything in this notice, we encourage you to contact us at discover@tilli.pro

Who does this notice apply to?

This notice applies to all users of our service (our "Customers", each or collectively "you" or "your"). Some of the information collected from Customers may be personal data, and this notice provides information about your rights regarding your personal data.

If you are located in the European Union (EU) or European Economic Area (EEA), please refer to the section below outlining your rights under the General Data Protection Regulation (GDPR), which provides detailed information about how you can access, control, and protect your personal data. Customers in California should additionally refer to the section of this notice below, which provides information regarding Utilli's privacy practices in California.

What data do we collect?

The following data is collected by or on behalf of Utilli:

1- *Data provided by Customers. This includes:*

- Name
- Email address
- Age
- Mailing address and/or service address
- Telephone numbers
- Payment information
- Identification documentation such as driving license or passport
- Employment information
- Education information
- Photos

2 – *Data created during use of our service. This may include:*

- Location data
- Transaction information, which allows us to track what services are requested and provided
- Usage data, which tells us how users interact with our services. In some cases, we collect this data through cookies and similar tracking technologies that create and maintain unique identifiers. To learn more about these technologies, please see our Cookie Notice.
- Device data, which provides us with information about the devices used to access our services, including IP addresses, referring URLs and operating systems.

How do we use the data we collect?

Utilli collects and uses data collected from Customers:

- To provide and maintain our services
- To enhance the safety and security of our users and services, including security and fraud prevention
- For customer support
- To send marketing and non-marketing communications to users
- To meet our legal obligations, for example for Anti-Money Laundering and Know Your Customer requirements
- In connection with legal proceedings

What data do we share with others, and why?

Utilli may be required to share data with our affiliates and partners, at your request or to fulfill our contract with you. We may also share data with our affiliates and partners, for legal reasons or in connection with claims or disputes.

Utilli may share the data we collect:

1- *With Utilli service providers and business partners*

Utilli provides data to vendors, consultants, marketing partners, and other service providers or business partners. These include:

- Payment processors and facilitators
 - Cloud storage providers
 - Marketing partners and marketing platform providers
 - Data analytics providers
 - Consultants, lawyers, accountants and other professional services providers
- 2- *For legal reasons or in the event of a dispute*

Utilli may share your personal data if we believe it's required by applicable law, regulation, operating license or agreement, legal process or governmental request, or where the disclosure is otherwise appropriate due to safety or similar concerns.

This also includes sharing personal data with others in connection with, or during negotiations of, any merger, sale of company assets, consolidation or restructuring, financing, or acquisition of all or a portion of our business by or into another company.

3- *With consent*

Utilli may share your personal data other than as described in this notice if we notify you and you consent to the sharing.

How long do we keep your data for?

Utilli retains data for as long as necessary for the purposes described above. This means that we retain different categories of data for different periods of time depending on the category of user to whom the data relates, the type of data, and the purposes for which we collected the data.

Customers may request deletion of their accounts at any time by contacting us at discover@tilli.pro. However, we may retain data after a deletion request due to legal or regulatory requirements or for the reasons stated in this policy.

What are our grounds for processing data?

We only collect and use personal data where we have lawful grounds to do so. These include processing user personal data to fulfil a contract with you, for purposes of Utilli's legitimate interests or those of other parties, to fulfil our legal obligations, or based on consent.

How do we secure your data?

Utilli is committed to the security and integrity and confidentiality of your information. We have implemented technical, administrative and physical security measures that are designed to protect your information from unauthorized access, disclosure, use and modification. We regularly review our security procedures to consider appropriate new technology and methods. Because we are a payment facilitator, we have enhanced security protocols to ensure that your financial information remains secure. For example, we use Secure Socket Layer (SSL) and Transport Layer Security (TLS), which are encryption and protection technologies to secure online transactions. However, unfortunately no method of storage on or transmission over the internet is 100% secure, and so we cannot guarantee the absolute security of your personal information.

What about children's data?

Utilli is not directed to children, and we do not knowingly collect personal information from children under the applicable age threshold.

Under the GDPR, the processing of personal data of children is lawful only where the child is at least 16 years old, unless Member State law allows for a lower age limit (which may not be below 13 years). In such cases, consent must be given or authorized by the holder of parental responsibility over the child.

For children under 13 years of age, as applicable under both GDPR and CCPA, we do not knowingly collect personal information. If you believe that a child under the applicable age threshold has provided us with personal information without parental consent, please contact us at discover@tilli.pro, and we will take steps to delete such information.

What are your Rights Under GDPR?

If you are located in the European Union (EU) or European Economic Area (EEA), you have certain rights regarding your personal data under the General Data Protection Regulation (GDPR). These rights ensure transparency and give you control over your information.

1. Right to Access: You can request a copy of the personal data we hold about you, as well as information about how we process it.
2. Right to Rectification: You can request correction of inaccurate or incomplete personal data.
3. Right to Erasure (Right to Be Forgotten): You can request that we delete your personal data when it is no longer necessary for the purposes it was collected or if you withdraw your consent.
4. Right to Restrict Processing: In certain circumstances, you can ask us to limit how we use your personal data, for example, while we investigate your concerns about its accuracy or our use of it.
5. Right to Data Portability: You have the right to request a copy of your personal data in a structured, commonly used, and machine-readable format, and you can ask us to transfer it to another organization, where technically feasible.
6. Right to Object: You can object to the processing of your personal data in certain situations, such as when it is processed for direct marketing or based on our legitimate interests.
7. Right to Withdraw Consent: If you have given us consent to process your personal data, you can withdraw it at any time. This will not affect the lawfulness of processing based on consent before it was withdrawn.
8. Right to Complain: If you believe we have violated your rights under GDPR, you have the right to lodge a complaint with your local data protection authority.

To exercise any of these rights, please contact us at discover@tilli.pro. We will respond to your request as soon as possible and within the time limits set by GDPR.

What are my rights as a California resident?

The California Consumer Privacy Act (CCPA) allows consumers in California to opt out of certain sharing of their data.

We do not track users over time and across apps or websites, and our website therefore does not respond to Do Not Track signals.

As further described above, Utilli collects personal data from Customers. Specifically, we collect (and/or have collected during at least the 12-month period preceding the effective date of this privacy notice) the following categories of personal information:

- Financial information, such as payment card numbers
 - Identification information, such as name, email address, postal address, phone number, passport number or driver's license number
 - Transaction information, such as information about when and where payment transactions occur, the payment amounts, billing information and the devices and payment methods used to complete the transactions
 - Other information you provide, such as information you voluntarily provide to us
 - Commercial information, such as information about the products and services you have bought ,information about your payment transactions and payment methods
 - Electronic information, such as web browser and device characteristics
 - Geolocation data, including the location of your device
 - Internet or other electronic network activity information, including information about how you use and interact with our services
 - Online identifiers, IP address and unique personal identifiers, cookies and similar technologies
 - Professional or employment related information, such as information you provide about your business
 - Inferences drawn from any of the information above to create a profile about you that may reflect, for example, your preferences, characteristics and behavior, including for account security purposes or to enhance our services to you
- California residents may request that Utilli:**
- Disclose the sources, categories, and specific pieces of personal information we have collected about them, how that information is used including the purpose, and with whom Utilli shares it
 - Delete their personal information
 - Disclose, for any "sales" of personal information under the CCPA, the categories of personal information collected and sold and to what categories of third parties it was sold
 - Opt them out of sales of their personal information (if any)
 - Provide a copy of their personal information in a readily usable format that allows the information to be transmitted to others
 - California residents may not be discriminated against for exercising any of the rights described above.

California residents who are Customers may exercise these rights by contacting Utilli at discover@tilli.pro

California law requires us to let you know how we respond to web browser Do Not Track ("DNT") signals. One of the ways we commit to user privacy is by honoring DNT browser settings.

Cookie Notice

We and our affiliates, third parties, and other partners use cookies and other identification technologies on our websites, mobile applications, email communications, advertisements, and other online services (collectively, the "Services") for a number of purposes, including: authenticating users, remembering user preferences and settings, determining the popularity of content, delivering and measuring the effectiveness of advertising campaigns, analyzing site traffic and trends, and generally understanding the online behaviors and interests of people who interact with our Services. You can read more here about the types of cookies we use, why we use them, and how you can exercise your choices.

Cookies and related technologies overview

Cookies are small text files that are stored on your browser or device by websites, apps, online media, and advertisements that are used to remember your browser or device during and across website visits. We also utilize other technologies that may identify you or the devices you use. For example, 'pixel tags' (also called beacons) are small blocks of code installed on (or called by) a webpage, app, or advertisement which can retrieve certain information about your device and browser, including, for example: device type, operating system, browser type and version, website visited, time of visit, referring website, IP address, advertising identifiers, and other similar information, including the small text file (the cookie) that uniquely identifies the device. Pixels provide the means by which third-parties can set and read browser cookies from a domain that they do not themselves operate and collect information about visitors to that domain, typically with the permission of the domain owner. 'Local storage' refers generally to other places on a browser or device where information can be stored by websites, ads, or third-parties (such as HTML5 local storage and browser cache). 'Software Development Kits' (also called SDKs) function like pixels and cookies, but operate in the mobile app context where pixels and cookies cannot always function. The primary app developer can install pieces of code (the SDK) from partners in the app, and thereby allow the partner to collect certain information about user interaction with the app and information about the user device and network information.

Your choices

You have the right to choose whether or not to accept cookies. However, they are an important part of how our Services work, so you should be aware that if you choose to refuse or remove cookies, this could affect the availability and functionality of the Services.

Most web browsers are set to accept cookies by default. If you prefer, you can usually choose to set your browser to remove or reject browser cookies. To do so, please follow the instructions provided by your browser which are usually located within the 'Help' or 'Preferences' menu. Some third-parties also provide the ability to refuse their cookies directly by clicking on an opt-out link, and we have indicated where this is possible in the table below.

For further information about cookies, including how to see what cookies have been set on your device and how to manage and delete them, you can visit <https://www.youradchoices.com>

For mobile users, you have controls in your device Operating System that enables you to choose whether to allow cookies, or share your advertising ID with companies like Utilli or our advertising service providers. For information on controlling your mobile choices, you can visit <https://www.networkadvertising.org/mobile-choices>.

To help control or block certain ads in mobile applications, you may choose to download and utilize the DAA mobile app.

Types and purposes of cookies

Please note that the cookies used may vary between our three products, Nudge, tillix, and tilliPay as not all products utilize the same types of cookies; however, our main website exclusively uses strictly necessary, advertising, and analytics cookies to ensure essential functionality and improve user experience.

The following table sets out the different categories of cookies that our Services use and why we use them. The lists of third party cookie providers are intended merely as illustrative and should not be viewed as a comprehensive list.

Types of Cookie	Purpose	Who Serves (for example)
Strictly necessary	These cookies (including local storage and similar technologies) are essential to enable your use of the site or services, such as assisting with your account login, so we can show you the appropriate experience and features, such as your account information, trip history, and to edit your account settings. They may also provide authentication, site security and help localize the language based on the geography of your visit.	Utilli
Site features and services	These provide functionality that help us deliver products and Services. For example, cookies help you log in by pre-filling fields. We may also use cookies and similar technologies to help us provide you and others with social plug-ins and other customized content and experiences, such as making suggestions to you and others.	Utilli
Analytics, performance and research	These are used to understand, improve and research products and Services, including when you access our website and related websites and apps from a computer or mobile device. For example, we may use cookies to understand how you are using site features, and segmenting audiences for feature testing. We and our partners may use these technologies and the information we receive to improve and understand how you use websites, apps, products, services and ads.	Google HubSpot
Advertising	These cookies and pixels are used to track email marketing or ad campaign performance and efficiency. For example, we and our ad partners may rely on information gleaned through these cookies to serve you ads that may be interesting to you on other websites. Similarly, our partners may use a cookie, attribution service or another similar technology to determine whether we've served an ad and how it performed or provide us with information about how you interact with them.	Google LinkedIn
Mobile-specific	These service providers use various technologies to deliver relevant mobile ads, track mobile marketing or mobile ad campaign performance and efficiency.	Google

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